

§ 915-a. Universal free school meals. 1. The department shall require all school districts, charter schools and non-public schools in the state that participate in the national school lunch program or school breakfast program as provided in the Richard B. Russell National School Lunch Act and the Child Nutrition Act, as amended, to serve breakfast and lunch at no cost to the student. School districts, charter schools and non-public schools shall maximize federal reimbursement for school breakfast and lunch programs by adopting Provision 2, the federal Community Eligibility Provision, or any other provision under such Act, the National School Lunch Act or the National Child Nutrition Act that, in the opinion of the department, maximizes federal funding for meals served in such programs. Provided that school food authorities that do not qualify as a single entity to participate in the community eligibility provision shall be required to group schools within the school food authority, to the extent possible, for purposes of maximizing participation in the community eligibility provision, and provided further that school food authorities shall reapply annually for the community eligibility provision program in the event that doing so would result in a higher percentage of meals being reimbursed at the federal reimbursement rate for a free meal.

2. Notwithstanding any provision of law, rule or regulation to the contrary, for the two thousand twenty-five--two thousand twenty-six school year and each school year thereafter, for each breakfast and lunch meal served, the department shall reimburse the school food authority the difference between (a) the combined state and federal reimbursement rate for a reduced-price or paid meal, respectively, for the current school year and (b) the combined state and federal reimbursement rate for a free meal for the current school year, provided that the total reimbursement rate for each meal served shall equal the combined state and federal reimbursement rate for a free meal for the current school year.

3. The department, in consultation with the office of temporary and disability assistance, shall promulgate any rule or regulation needed for school districts, charter schools and non-public schools to promote the supplemental nutrition assistance program to a student or person in

parental relation to a student by providing either application assistance or a direct referral to an outreach partner identified to the department by the office of temporary and disability assistance to maximize the number of students directly certified for free school meals.

4. In addition to fulfilling any other applicable state and federal requirements, the department shall provide technical assistance to assist school districts, charter schools, and non-public schools in the transition to universal school meals to ensure successful program operations and to maximize federal funding, including but not limited to the following:

(a) Assisting school food authorities with one or more schools qualifying for the community eligibility provision in meeting any state and federal requirements necessary in order to maximize reimbursement through the community eligibility provision, including assisting such school food authorities in maximizing participation in the community eligibility provision.

(b) If a school food authority is ineligible to participate in and receive reimbursement through the community eligibility provision, assisting the school food authority in achieving and maximizing eligibility and, if that is not feasible, assisting the school food authority in determining the viability of using Provision 2 or other special federal provisions available to schools to maximize federal reimbursement.

5. School districts, charter schools, and non-public schools shall maximize the number of students eligible for free meals by conducting the Direct Certification Matching Process at a minimum of three times per year, designating children as "Other Source Categorically Eligible", as defined by federal regulations, or, for schools not participating in the Community Eligibility Provision or Provision 2, by annually collecting the free and reduced-price meal application.